

2:00 PM

LINE 11

25-CIV-06521

FELICITO H. DESUASIDO, ET AL. VS. GENEVIEVE GALVEZ DESUASIDO

FELICITO H. DESUASIDO
GENEVIEVE GALVEZ DESUASIDO

MICHELLE L. ZACCONI
ANDREW C. MCCLELLAND

MOTION TO QUASH APRIL 2026 SERVICE OF SUMMONS

TENTATIVE RULING:

The motion to quash is DENIED. The evidence in opposition to the motion indicates that the service address is cross-defendant's usual place of business within the meaning of Code of Civil Procedure section 415.20 because it is his business enterprise. Due to the parties having the same last names, the court uses first names to refer to the parties and means no disrespect.

The proof of service states that Alexander Desuasido (referred to as Alvin) was served by substitute service on April 9, 2026, at his usual place of business located at 4802 Olympic Avenue in San Mateo. The documents were left with Kevin Lee, the individual in charge. The proof of service is signed by registered process server, Jeffrey Pink. As a result, there is a presumption, affecting the burden of producing evidence, of the facts stated. (Evid. Code, §647.)

Alvin's declaration states that Tech Rocks is not his usual place of business, that he does not maintain a regular office presence there, and that he does not regularly work there. However, Genevieve has provided evidence to show that Tech Rocks constitutes Alvin's usual place of business for purposes of substitute service. Alvin does nothing to rebut this specific evidence and the court accepts the specific facts in Genevieve's declaration over Alvin's conclusory declaration.

The Judicial Council Comment to Code of Civil Procedure section 415.20, subdivision (b) indicates that "usual place of business" includes a defendant's customary place of employment as well as his own business enterprise. The declaration of Steven Davidson indicates that Alvin is identified as the owner of Tech Rocks, LLC on a Statement of Information filed on October 12, 2020. A copy of the Statement of Information is attached to his declaration as Ex. D. The declaration further states that Alvin's LinkedIn profile identifies him as CEO of Tech Rocks, (see Ex. F), the business website identifies him as an instructor (see Ex. G), and, an interview uploaded to YouTube as part a Local Business Spotlight, he is introduced as the owner of Tech Rocks (see Ex. I.)

Alvin has ten (10) days from service of written notice of entry of order to respond. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Genevieve shall prepare a written order consistent with the court's ruling for the court's

signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 12

25-CIV-08327

JANE DOE, ET AL. VS. THOMAS WESTBROOK QUINBY, ET AL.

JANE DOE

AUDREY A. SMITH

THOMAS WESTBROOK QUINBY

PETITION FOR APPROVAL OF COMPROMISE OF MINOR'S CLAIM

TENTATIVE RULING:

Petitioner and counsel are to APPEAR. Zoom appearances are allowed. The court requires appearance for approval of minor's compromises. However, due to the sensitive nature of this case, the court will endeavor to call the matter last and close the courtroom and petitioner should keep the camera off during the entire hearing.

Counsel is to explain where the funds will be deposited. It may be in the petition, but the court did not see it.

The court has reviewed the sealed petition and in exercising its discretion after reviewing all the circumstances, finds that the settlement amount reasonable based upon the circumstances of the case and the need to resolve this case as soon as possible so that the minor does not have to go through further litigation.

The court also finds requested attorneys' fees and costs are reasonable. Counsel is only requesting a 25% contingency, which is lower than the standard contingency. (See *Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 506 ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency for all cases is 33 to 40 percent].) The court has reviewed the factors set forth in California Rule of Court 7.955(b) in making this conclusion. The court finds that the costs are also reasonable.
